

26VECV00703 26VECV00703

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-07-30

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAV%2C107%2C07%2F30%2F2026

Source SHA-256: fcc7f997af6512f30c80e47d8937a4693385a19e08dd8036b3256a1fbec9dd4

Case Number: 26VECV00703 Hearing Date: July 30, 2026 Dept: 107

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

COUNTY OF LOS ANGELES

NORTHWEST DISTRICT

Karina

B. Gutierrez, et al.,

Plaintiffs,

v.

Orchid

Heights LLC

Defendant.

Case Number Department

26VECV00703 107

COURT'S [TENTATIVE]

ORDER RE:

Demurrer

with Motion to Strike

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

(1) Overrule the demurrer; (2) Deny

the motion to strike the request for punitive damages; (3) Grant the motion to strike the request for attorneys' fees under Civil Code section 1942.4.

I.

BACKGROUND

This

is a landlord-tenant dispute. Plaintiffs Karina B. Gutierrez, Joel Macias Gutierrez, Rosebeth Macias Gutierrez, and Elizabeth Macias Gutierrez, a minor by and through her Guardian Ad Litem, Karina B. Gutierrez ("Plaintiffs") were tenants at property located at 21535 Roscoe Blvd. Unit #211, Canoga Park, CA 91304 (the "Property") from December 2023 to January 2026. (Complaint ¶ 3.) The Property had had habitability defects. (Complaint ¶ 13.)

On

February 3, 2026, Plaintiffs filed a complaint against Defendants Orchid Heights LLC ("Defendant") and Does 1 through 20, alleging causes of action for: (1) breach of contract; (2) breach of the implied warranty of habitability; (3) violation of Civil Code section 1942.4; (4) negligence; (5) intentional infliction of emotional distress; (6) negligent infliction of emotional distress; (7) violations of Business & Professions Code section 17200, et seq.; (8) breach of the covenant of good faith & fair dealing; (9) breach of the implied covenant of quiet enjoyment; (10) private nuisance; and (11) constructive eviction.

On

April 30, 2026, Defendant filed a demurrer with motion to strike. On July 17, 2026, Plaintiffs filed oppositions. On July 22, 2026, Defendant filed replies.

II.

TIMELINESS

"A person against

whom a complaint or cross-complaint has been filed may, within 30 days after service of the complaint or cross-complaint, demur to the complaint or

cross-complaint." (Code Civ. Proc., § 430.40, subd. (a).) Per Code of Civil Procedure section 435, subdivision (b)(1), a

motion to strike should also be filed within 30 days after service of the complaint. (See Code Civ. Proc., § 412.20, subd. (a)(3).)

Per Code

of Civil Procedure section 1005, subdivision (b), moving papers must be filed at least 16 court days before they are set for hearing, oppositions must be filed at least nine court days before the set hearing, and replies must be filed at least five court days before the set hearing.

Plaintiffs served Defendant with the complaint by personal service on February 6, 2026. (Proof of Service filed 02/10/26.) Defendant filed the demurrer with motion to strike on April 30, 2026, which is more than 30 days after February 6, 2026. Thus, the demurrer with motion to strike was untimely under Code of Civil Procedure sections 430.40 and 435.

“A trial court has broad discretion to accept or reject late-filed papers.” (Jack v. Ring LLC (2023) 91 Cal.App.5th 1186, 1210, brackets removed.) The court will exercise its discretion and consider the demurrer with motion to strike.

The demurrer with motion to strike, oppositions, and replies were timely filed under Code of Civil Procedure section 1005.

III.

MEET

AND CONFER

California Code of Civil

Procedure section 430.41, subdivision (a) requires parties to “meet and confer in person, by telephone, or by video conference” before the filing of a demurrer to attempt to informally resolve the objections raised in the demurrer. The demurring party is required to file and serve with the demurrer a declaration either confirming that parties were unable to resolve the issues raised by the demurrer despite having met and conferred or that the opposing party failed to meet and confer with the demurring party in good faith. (Code Civ. Proc. § 430.41, subd. (a)(3).)

California

Code of Civil Procedure section 435.5, subdivision (a) also requires parties to

meet and confer before filing a motion to strike.¿¿

Defendant's counsel

submits declarations stating they conferred with Plaintiffs' counsel by written correspondence and telephone, but the parties were unable to reach an agreement. (Arzoo Declaration (MTS) ¶¶ 3-7; Arzoo Declaration (Demurrer) ¶¶ 3-6.) Defendant satisfied the meet and confer requirements.

¿¿

IV.

DEMURRER

a. Legal Standard

"A demurrer tests the pleading alone, and not the evidence or the facts alleged." (E-Fab, Inc. v. Accountants, Inc. Servs. ("E-Fab") (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint's properly pleaded or implied factual allegations. (Id.) The court also considers "judicially noticed matters." (Id.) A complaint must contain "[a] statement of the facts constituting the cause of action, in ordinary and concise language." (Code Civ. Proc., § 425.10, subd. (a)(1).) A "complaint ordinarily is sufficient if it alleges ultimate rather than evidentiary facts." (Doe v. City of Los Angeles (2007) 42 Cal.4th 531, 550.)¿

¿

A party may demur to a complaint or cross-complaint because it "does not state facts sufficient to constitute a cause of action." (Code Civ. Proc., § 430.10, subd. (e).)¿ A party may also demur because the complaint or cross-complaint is uncertain. (Code Civ. Proc., § 430.10, subd. (f).) "[U]ncertain' includes ambiguous and unintelligible." (Code Civ. Proc., § 430.10, subd. (f).)

b. Discussion

Defendant

demurs to Plaintiffs' fifth cause of action for intentional infliction of emotional distress. (Demurrer p. 6.) Defendant argues Plaintiffs fail to allege

extreme and outrageous conduct and fail to allege severe emotional distress sufficient to warrant damages. (Demurrer p. 6.)

In

opposition, Plaintiffs cite *Stoiber v. Honeychuck* (“*Stoiber*”) (1980) 101 Cal.App.3d 903 and state in *Stoiber* “the Court of Appeal held that a tenant adequately stated a claim for intentional infliction of emotional distress by alleging that the landlord had actual knowledge of dangerous and defective conditions, including leaking sewage, deteriorated flooring, a falling ceiling, a leaking roof, and broken windows, yet failed to correct them” and “[t]he same reasoning applies here, where Plaintiffs allege Defendant had repeated actual notice of the pervasive infestation and nevertheless allowed the condition to continue for nearly two years.” (Demurrer Opposition p. 5.)

In

reply, Defendant argues *Stoiber* is distinguishable because it involved leaking sewage, collapsing ceilings, deteriorated flooring, broken windows, and other substantial hazards, while this matter involves pest control issues. (Demurrer Reply p. 2.) Defendant also argues Plaintiffs fail to allege reckless disregard or intent and severe emotional distress. (Demurrer Reply p. 3.)

The elements of an

intentional infliction of emotional distress cause of action are: “(1) outrageous conduct by the defendant; (2) the defendant’s intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff’s suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant’s outrageous conduct.” (*Yau v. Santa Margarita Ford, Inc.* (2014) 229 Cal.App.4th 144, 160.) To be outrageous, the conduct “must be so extreme as to exceed all bounds of that usually tolerated in a civilized society.” (*Id.*) To avoid a demurrer “the plaintiff must allege with great specificity the acts which he or she believes are so extreme as to exceed all bounds of that usually tolerated in a civilized community.” (*Id.* at pp. 160-161, brackets and internal quotation marks omitted.)

In *Stoiber*,

the complaint alleged defective and dangerous conditions including “leaking of sewage from the bathroom plumbing; defective and dangerous electrical wiring; structural weaknesses in the walls; deteriorated flooring; falling ceiling;

leaking roof; dilapidated doors; broken windows; and other unsafe and dangerous conditions.” (Stoiber, *supra*, 101 Cal.App.3d at p. 912.) The Court of Appeal held:

[I]t

is clear that the availability of a remedy for breach of implied warranty of habitability does not preclude a tenant from suing his landlord for intentional infliction of mental distress if the landlord's acts are extreme and outrageous and result in severe mental distress. Whether this is so under the present allegations, presents a factual question it cannot be said as a matter of law that appellant has not stated a cause of action.

(Id.
at p. 922.)

Here,

Plaintiffs allege the Property was infested with cockroaches since they moved into the Property in December 2023. (Complaint ¶¶ 17-19.) Plaintiffs allege they verbally notified Defendant's on-site manager about the infestation and requested they take action. (Complaint ¶ 19.) Plaintiffs allege Defendant failed to take action by conducting an inspection, retaining licensed pest control services, or performing remediation. (Complaint ¶ 19.) Plaintiffs allege the infestation persisted and worsened, with cockroaches spreading through the Property “infiltrating Plaintiffs' kitchen, bathrooms, closets, and living spaces, and contaminating furniture, appliances, and personal belongings.” (Complaint ¶ 20.) Plaintiffs allege they “observed cockroaches inside cabinets, inside children's backpacks, on ceilings, and on upholstered furniture, creating unsanitary and degrading living conditions.” (Complaint ¶ 21.) In or about March 2024, Plaintiffs notified Defendant about the infestation again. (Complaint ¶ 22.) Plaintiffs advised management they purchased pesticides, sprays, and traps to control the roaches because Defendant had done nothing. (Complaint ¶ 22.) Defendant advised Plaintiffs to submit a report through their property management application but failed to take corrective action. (Complaint ¶ 22.) Plaintiffs continued to live in the Property from April 2024 through June 2025 and repeatedly notified Defendant about the infestation. (Complaint ¶ 24.) Plaintiffs purchased pesticides, glue traps, and sticky traps. (Complaint ¶ 25.) Plaintiffs allege the infestation was pervasive and ongoing and posed health risks. (Complaint ¶¶ 27-28.)

The

court finds Plaintiffs' allegations concerning the cockroach infestation are analogous to the allegations in Stoiber showing defective and dangerous conditions. The court understands a pervasive cockroach infestation is different than leaking sewage. But Plaintiffs here allege Defendant was aware of a pervasive and ongoing infestation that negatively impacted Plaintiffs' health and safety. (Complaint ¶¶ 27-29.) In the absence of authority specifically stating a cockroach infestation is insufficient, the court cannot say, as a matter of law, that the alleged conduct here is insufficient to state a cause of action.

Defendant

also argues Plaintiffs fail to allege severe or extreme emotional distress. (Demurrer p. 6.) The court disagrees. Plaintiffs allege they suffered "significant distress" and "anxiety" and "suffered ongoing emotional distress, embarrassment, and anxiety from being forced to live in an apartment infested with cockroaches." (Complaint ¶¶ 28, 30.) These allegations are sufficient to allege severe or extreme emotional distress.

Finally,

in reply, Defendant also argues Plaintiffs fail to allege Defendant acted with reckless disregard or intent. (Reply p. 3.) Defendant did not specifically raise this issue in the demurrer. (Demurrer pp. 5-6.)

Parties

generally may not raise an issue for the first time in a reply brief and issues raised for the first time in a reply will generally not be considered, absent good cause for failure to present the issue earlier. (See *Owens v. City of Oakland Housing, Residential, Rent & Relocation Board* (2020) 49 Cal.App.5th 739, 746.)

Plaintiffs

have not had an opportunity to respond to Defendant's argument that Plaintiffs fail to allege Defendant acted with reckless disregard or intent. Thus, the court does not consider this issue.

The

demurrer is overruled.

V.

MOTION

TO STRIKE

a. Legal Standard

The court may, upon a motion, or at any time in its discretion, and upon terms it deems proper, strike any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436, subd. (a).) The court may also strike all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court. (Code Civ. Proc., § 436, subd. (b).) The grounds for moving to strike must appear on the face of the pleading or by way of judicial notice. (Code Civ. Proc., § 437, subd. (a).)

b. Discussion

Punitive

Damages:

Defendant

moves to strike Plaintiffs' allegations, references to, and prayer for punitive damages. (MTS pp. 2-5.) Defendant argues Plaintiffs fail to allege conduct sufficient to support a claim for punitive damages. (MTS p. 12.) Defendant also argues Plaintiffs fail to allege malice, oppression, or fraud by a corporate agent or corporate ratification. (MTS pp. 13-14.)

A

motion to strike is appropriate to attack a claim for punitive damages. (Grieves v. Superior Court (1984) 157 Cal.App.3d 159, 164.) "Punitive or exemplary damages are remedies available to a party who can plead and prove the facts and circumstances set forth in Civil Code section 3294[.]" (Id. at pp. 163-164, brackets removed.) To justify a punitive damages award, the defendant must be "guilty of oppression, fraud, or malice." (Civ. Code, § 3294.)

Malice

is defined as "conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (Civ. Code, § 3294, subd. (c)(1).) Oppression is defined as "despicable conduct that

subjects a person to cruel and unjust hardship in conscious disregard of that person's rights." (Civ. Code, § 3294, subd. (c)(2).) Fraud is defined as "an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury." (Civ. Code, § 3294, subd. (c)(3).) 22

"Punitive damages may not be pleaded generally." (Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority (2022) 83 Cal.App.5th 1137, 1193.) "The mere allegation an intentional tort was committed is not sufficient to warrant an award of punitive damages." (Grieves v. Superior Court, supra, 157 Cal.App.3d 159 at 166.) And "conclusory characterization of defendant's conduct as intentional, wilful and fraudulent is a patently insufficient statement of 'oppression, fraud, or malice, express or implied,' within the meaning of section 3294." (Brousseau v. Jarrett (1977) 73 Cal.App.3d 864, 872.) "Not only must there be circumstances of oppression, fraud or malice, but facts must be alleged in the pleading to support such a claim." (Grieves v. Superior Court, supra, 157 Cal.App.3d at p. 166; Today's IV, Inc. v. Los Angeles County Metropolitan Transportation Authority, supra, 83 Cal.App.5th at p. 1193 ["In addition to the requirement that the operative complaint set forth the elements as stated in section 3294, it must include specific factual allegations showing that defendant's conduct was oppressive, fraudulent, or malicious to support a claim for punitive damages."].) 23

In Penner v. Falk (1984) 153 Cal.App.3d 858, 867, the Court of Appeal stated the pleadings adequately supported a punitive damages award because "[t]he pleadings sufficiently allege facts setting forth long existing physical conditions of the premises which portend danger for the tenants" and "[t]he pleadings also set out that respondents knew of those conditions for up to two years, had power to make changes, but failed to take corrective and curative measures." The Court stated that "[i]f proven, these allegations would support an award of punitive damages." (Id.)

Here,
Plaintiffs allege they repeatedly complained to Defendant about the cockroach infestation starting January 5, 2024, and through June 2025, but Defendant "failed to provide professional extermination or building-wide treatment for

nearly two years.” (Complaint ¶¶ 19, 24-31.) Plaintiffs also allege the infestation “posed serious health risks, particularly to Plaintiffs’ minor children, and caused Plaintiffs significant distress, anxiety, and loss of use and enjoyment of their home.” (Complaint ¶ 28.) Finally, Plaintiffs allege that “[a]s a result of the infestation, Plaintiffs experienced physical symptoms including skin irritation, allergic reactions, soreness, and stomach discomfort, which Plaintiffs reasonably believed were related to their prolonged exposure to unsanitary living conditions.” (Complaint ¶ 29.)

Plaintiffs

allege long existing physical conditions of the Property which portended danger and that Defendant knew about the action for at least a year and a half, but failed to take action. The court finds these allegations are sufficient under *Penner v. Falk*, supra, 153 Cal.App.3d at p. 867.

“An

employer shall not be liable for damages pursuant to subdivision (a), based upon acts of an employee of the employer, unless the employer had advance knowledge of the unfitness of the employee and employed him or her with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are awarded or was personally guilty of oppression, fraud, or malice. With respect to a corporate employer, the advance knowledge and conscious disregard, authorization, ratification or act of oppression, fraud, or malice must be on the part of an officer, director, or managing agent of the corporation.” (Civ. Code, § 3294, subd. (b).)

A

“managing agent” includes “only those corporate employees who exercise substantial independent authority and judgment in their corporate decisionmaking so that their decisions ultimately determine corporate policy.” (*White v. Ultramar, Inc.* (“*White*”) (1999) 21 Cal.4th 563, 566-567.) “The scope of a corporate employee’s discretion and authority . . . is . . . a question of fact for decision on a case-by-case basis.” (*Id.* at p. 567.)

zzz

Here,

Plaintiffs allege Debbie G. Cohen was Defendant’s managing agent who exercised “substantial independent authority and judgment over corporate policy,

including but not limited to decisions regarding habitability compliance, pest control, maintenance protocols, responses to tenant complaints, and whether and when to expend funds for remediation.” (Complaint ¶ 56.) Plaintiffs allege Cohen “had actual knowledge of Plaintiffs’ repeated complaints regarding the cockroach infestation and the uninhabitable conditions at the Subject Property. Despite this knowledge, she knowingly approved, directed, and ratified a course of conduct that prioritized cost avoidance and convenience over Plaintiffs’ health and safety.” (Complaint ¶ 57.) Plaintiffs allege Cohen “acting as a managing agent, allowed Defendants to delay or entirely withhold professional pest control services for nearly two years, while continuing to demand and accept full rent from Plaintiffs.” (Complaint ¶ 58.) Finally, Plaintiffs allege Cohen “ratified Defendants’ misconduct by permitting Plaintiffs’ complaints to be ignored or deflected, by failing to implement adequate policies or procedures to address infestations, and by allowing Plaintiffs, including minor children, to remain exposed to unsanitary living conditions even after government inspections confirmed habitability violations.” (Complaint ¶ 59.)

In
reply, Defendant argues Plaintiffs’ labeling Cohen a managing agent is insufficient and Plaintiffs must plead facts showing Cohen “exercised discretionary authority over corporate policy and personally authorized, directed, or ratified the specific wrongful conduct at issue.” (Demurrer Reply p. 3.)

Plaintiffs
allege Cohen was Defendant’s managing agent who exercised “substantial independent authority and judgment over corporate policy, including but not limited to decisions regarding habitability compliance, pest control, maintenance protocols, responses to tenant complaints, and whether and when to expend funds for remediation.” (Complaint ¶ 56.) These are facts indicating Cohen exercised substantial independent authority and judgment on corporate decision making by making decisions regarding habitability, pest control maintenance, responses to tenant complaints, and whether and when to expend funds for remediation.

Plaintiffs
also allege Cohen ratified the conduct by failing to implement policies or procedures and permitting Plaintiffs to remain exposed to the unsanitary living conditions. (Complaint ¶ 59.) These are factual allegations, not legal conclusions.

The

court finds Plaintiffs sufficiently allege Defendant's managing agent, Cohen, authorized or ratified the conduct. The motion to strike Plaintiffs' request for punitive damages is denied.

Attorneys'

Fees Under Civil Code section 1942.4:

Defendant

moves to strike Plaintiffs' request for attorneys' fees and costs pursuant to Civil Code section 1942.4. (MTS p. 5.) Defendant argues Plaintiffs fail to allege facts Defendant was notified in writing about its obligation to abate the cockroach infestation or that the infestation was not caused by Plaintiffs. (MTS p. 15.) Defendant also argues Plaintiffs allege the Los Angeles Housing Department found and cited Defendant for other types of violations and concede Defendant addressed the violations. (MTS p. 15.)

In

opposition, Plaintiffs argue they allege the Property lacked characteristics required by Civil Code section 1941.1, involving lighting and other conditions. (MTS Opposition p. 8.)

In

reply, Defendant argues the inspection referenced in the complaint concerned smoke detectors, carbon monoxide detectors, and kitchen lighting issues. (MTS Reply p. 3.) Defendant argues that "Plaintiffs' cited governmental notice did not concern the principal condition upon which they base their damages allegations." (MTS Reply pp. 3-4.)

Civil

Code section 1942.4, subdivision (a) states:

(a) A landlord of a dwelling

may not demand rent, collect rent, issue a notice of a rent increase, or issue a three-day notice to pay rent or quit pursuant to subdivision (2) of Section 1161 of the Code of Civil Procedure, if all of the following conditions exist prior to the landlord's demand or notice:

(1) The dwelling

substantially lacks any of the affirmative standard characteristics listed in Section 1941.1 or violates Section 17920.10 of the Health and Safety Code, or is deemed and declared substandard as set forth in Section 17920.3 of the Health and Safety Code because conditions listed in that section exist to an extent that endangers the life, limb, health, property, safety, or welfare of the public or the occupants of the dwelling.

(2) A public officer or employee who is responsible for the enforcement of any housing law, after inspecting the premises, has notified the landlord or the landlord's agent in writing of his or her obligations to abate the nuisance or repair the substandard conditions.

(3) The conditions have existed and have not been abated 35 days beyond the date of service of the notice specified in paragraph (2) and the delay is without good cause. For purposes of this subdivision, service shall be complete at the time of deposit in the United States mail.

(4) The conditions were not caused by an act or omission of the tenant or lessee in violation of Section 1929 or 1941.2.

Civil Code section 1942.4, subdivision (b)(2) states: "[t]he prevailing party shall be entitled to recovery of reasonable attorney's fees and costs of the suit in an amount fixed by the court."

Civil Code section 1941.1, subdivision (a)(5) states:

(a) A dwelling shall be deemed untenable for purposes of Section 1941 if it substantially lacks any of the following affirmative standard characteristics or is a residential unit described in Section 17920.3 or 17920.10 of the Health and Safety Code:

[¶] . . . [¶]

(5) Electrical lighting, with

wiring and electrical equipment that conformed with applicable law at the time of installation, maintained in good working order.

Plaintiffs

allege they filed a formal complaint with the Los Angeles County Department of Public Health on or about July 1, 2025. (Complaint ¶ 32.) Plaintiffs allege the Los Angeles Housing Authority conducted an inspection on or about July 11, 2025, and identified “multiple habitability violations, including Defendants’ failure to provide required smoke detectors, failure to install carbon monoxide detectors, and defective or missing kitchen lighting . . .” (Complaint ¶ 33.) Plaintiffs allege Defendant was notified of the findings and ordered to correct the violations. (Complaint ¶ 34.) Plaintiffs allege Defendant replaced damaged appliances on or about August 28, 2025, and replaced fire alarms and repaired kitchen lighting on September 3, 2025. (Complaint ¶ 34.)

Plaintiffs

do not allege Defendant was notified of the violations in writing. Plaintiffs also do not specifically allege the conditions were not caused by an act or omission of Plaintiffs. Thus, Plaintiffs do not sufficiently allege a cause of action supporting their request for attorneys’ fees.

The

motion to strike the request for attorneys’ fees under Civil Code section 1942.4 is granted.

VI.

LEAVE

TO AMEND

“Where

the defect raised by a motion to strike or by demurrer is reasonably capable of cure, ‘leave to amend is routinely and liberally granted to give the plaintiff a chance to cure the defect in question.’” (CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1146.)

Plaintiffs

have not had an opportunity to amend the complaint. Thus, the court finds there is a reasonable possibility Plaintiffs can cure the defect identified above.

VII.

CONCLUSION

For

the foregoing reasons, the court overrules the demurrer. The court denies the motion to strike, in part, and grants it, in part. The court denies the motion to strike the allegations, references to, and prayer for punitive damages. The court grants the motion to strike the request for attorneys' fees under Civil Code section 1942.4 in paragraph 95 of the complaint and paragraph 6 of the prayer for relief. Plaintiffs are granted leave to amend within thirty (30) days of this order.

Dated: July 30, 2026 _____ Hon.

Eric Harmon

Judge of the Superior Court